FORM 109 (RULE 22-2 (2)) - AFFIDAVIT #1 OF JANE SMITH (PAGE 1 OF 2)

Court File No. S-240123 / Vancouver Registry | Deponent: Jane Smith

I, Jane Smith, Business Executive, of Suite 1800 - 1075 West Georgia Street, Vancouver, BC, SWEAR THAT:

1. I am the President and Chief Executive Officer of the Plaintiff, Acme Enterprises Ltd. (’Acme’), and as such I have personal knowledge of the matters hereinafter deposed to, except where stated on information and belief.
2. Acme is an investment and real estate development company incorporated pursuant to the laws of British Columbia.
3. On January 15, 2025, Acme entered into a formal Joint Venture Agreement with the Defendant, Pacific Developments Corp. (’Pacific’), to acquire and construct a 28-storey residential tower at 1200 Burrard Street, Vancouver, BC. Attached hereto and marked as Exhibit ’A’ is a true copy of the Joint Venture Development Agreement.
4. Pursuant to Section 4.2 of the Agreement, Pacific was designated Managing Partner, and was expressly required to maintain separate project accounts and provide monthly general ledger extracts and bank statements to Acme.
5. On May 10, 2026, I received an urgent cash-call request from the Defendant John Doe claiming cost escalations had exhausted the contingency budget and requesting an immediate capital contribution of $1,500,000 from Acme.

FORM 109 (RULE 22-2 (2)) - AFFIDAVIT #1 OF JANE SMITH (PAGE 2 OF 2)

Averments 6 to 11 & Commissioner Jurat

6. On May 12, 2026, in reliance upon the representations made by Mr. Doe, Acme transferred $1,500,000 into the account.
7. Following the transfer, I made repeated requests to Mr. Doe for wire transfer confirmations and bank statements. No accounting or bank verification was provided.
8. On August 12, 2026, Pacific delivered its List of Documents, which omitted all raw bank statements for Account 4410-***.
9. On September 14, 2026, litigation counsel sent a formal demand letter. Attached hereto as Exhibit ’B’ is a copy.
10. By reply letter dated September 28, 2026, Defendants’ counsel refused to produce the documents.
11. Without unredacted access to the actual bank statements, Acme is unable to determine whether its $1,500,000 was expended on the project or diverted to Pacific’s unrelated ventures.

SWORN BEFORE ME at the City of Vancouver, in the Province of British Columbia, this 25th day of October, 2026.

_____ _____

A Commissioner for taking Affidavits for British Columbia JANE SMITH

EXHIBIT ’A’ - JOINT VENTURE DEVELOPMENT AGREEMENT (PAGE 1 OF 2)

Commissioner Stamp: This is Exhibit ’A’ referred to in Affidavit #1 of Jane Smith, sworn October 25, 2026

THIS JOINT VENTURE DEVELOPMENT AGREEMENT dated for reference the 15th day of January, 2025.
BETWEEN: ACME ENTERPRISES LTD. (’Investor Partner’) AND: PACIFIC DEVELOPMENTS CORP. (’Managing Partner’)

WHEREAS the parties have agreed to form a joint venture to develop the lands at 1200 Burrard Street, Vancouver, BC;
NOW THEREFORE in consideration of the mutual covenants herein contained, the parties agree as follows:

ARTICLE 4 - MANAGEMENT, ACCOUNTS, AND AUDIT RIGHTS

4.1 Managing Partner Appointment: Pacific is appointed Managing Partner with operational carriage of construction.

4.2 Books, Records, and Dedicated Accounts:

(a) The Managing Partner shall maintain full, true, and unredacted books of account in accordance with Canadian ASPE.

(b) All project funds, including contingency capital, shall be held in dedicated Canadian Commercial Bank Account No. 4410-*** (the ’Project Account’) and shall not be commingled with any other project or corporate funds.

(c) The Investor Partner shall have the absolute right upon three (3) business days’ written notice to inspect, audit, and take copies of all bank statements, general ledgers, draw certificates, and trade invoices.

EXHIBIT ’A’ - JOINT VENTURE DEVELOPMENT AGREEMENT (PAGE 2 OF 2)

Article 9 - Default & Execution Blocks

ARTICLE 9 - DEFAULT AND FIDUCIARY REMEDIES

9.1 Events of Default: Failure by the Managing Partner to provide financial transparency or diversion of funds shall constitute an immediate Event of Default without cure period.

9.2 Fiduciary Accounting: The Managing Partner acknowledges that it holds all capital contributions as a fiduciary in trust.

9.3 Governing Law: This Agreement shall be governed by and construed in accordance with the laws of British Columbia.

IN WITNESS WHEREOF the parties have executed this Agreement as of the date first above written.

ACME ENTERPRISES LTD. per: _____

Jane Smith, President & CEO

PACIFIC DEVELOPMENTS CORP. per: _____

John Doe, Managing Director

EXHIBIT ’B’ - LITIGATION DEFICIENCY DEMAND LETTER

Commissioner Stamp: This is Exhibit ’B’ referred to in Affidavit #1 of Jane Smith, sworn October 25, 2026

SMITH & ASSOCIATES LITIGATION COUNSEL | Suite 1800 - 1075 West Georgia Street, Vancouver, BC V6E 3C9
Date: September 14, 2026 | DELIVERED BY EMAIL: dvance@vancelaw.bc.ca
To: Vance Barristers & Solicitors | Attention: David Vance
Re: Acme Enterprises Ltd. v. Pacific Developments Corp. et al. (BCSC Vancouver Action No. S-240123)

Dear Mr. Vance:
We have reviewed your clients’ List of Documents delivered on August 12, 2026.
Please be advised that Part 1 of the list is severely deficient under Supreme Court Civil Rule 7-1(1). While your clients have listed self-serving summary spreadsheets, you have entirely omitted the underlying bank statements for Canadian Commercial Bank Account No. 4410-***, the detailed trade draw requests, and the general ledgers evidencing the disbursement of our client’s $1,500,000 contingency contribution made on May 12, 2026.

Pursuant to Supreme Court Civil Rule 7-1(11), we hereby formally demand delivery of a verified Supplementary List of Documents listing these bank records within fourteen (14) days, failing which we have instructions to bring an application in Associate Judges Chambers for supplementary production and special costs.

Yours truly, SMITH & ASSOCIATES LITIGATION COUNSEL per: Jane Smith